

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Plaintiff designates
Bronx County as the
place of trial

----- X
CHRISTOPHER PHILLIPS,

Plaintiff,

Basis of venue is
county of occurrence

-against-

SUMMONS

THE CITY OF NEW YORK and
NYPD OFFICER EZEQUIEL BURGOS,

Defendants.

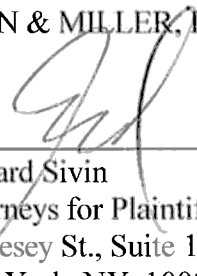
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 7, 2018

SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

THE CITY OF NEW YORK,
c/o NYC Corp. Counsel, 100 Church St., New York, NY 10007

NYPD OFFICER EZEQUIEL BURGOS,
c/o NYPD 46th Pct., 2120 Ryer Ave, Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
CHRISTOPHER PHILLIPS,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
NYPD OFFICER EZEQUIEL BURGOS,

Defendants.

----- X

Plaintiff, by his attorneys Sivin & Miller, LLP, complaining of defendants, alleges
as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter “the City”) was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the
dates when the causes of action accrued herein, a notice of claim and intention to sue was duly
served upon and filed with the defendants on behalf of plaintiff; that this action was not
commenced until the expiration of thirty (30) days after such notice of claim and intention to sue
was presented and defendants have neglected and/or refused to make adjustment or payment
thereon, and this action is being commenced within one year and ninety days after the causes of
action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, and
maintained a police force known as the New York Police Department (hereinafter “the NYPD”).

4. That at all times herein mentioned, defendant NYPD Officer Ezequiel Burgos (hereinafter "Burgos") was and is employed as an officer with the NYPD.

5. That at all times herein mentioned, Burgos was acting within the course and scope of his employment as an officer with the NYPD.

6. That at all times herein mentioned, Burgos was acting under color of state law.

7. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

THE FACTS

8. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

9. That on or about February 6, 2018, in the County of Bronx, City and State of New York, plaintiff was forcibly detained and taken into custody by New York State parole offices and members of the NYPD, without a warrant and without probable cause or reasonable suspicion to believe that he had committed or was about to commit any crime.

10. That in support of said detention, Burgos knowingly made false statements to the parole officers and to others designed to implicate plaintiff in crimes that he did not commit and that Burgos knew or should have known plaintiff did not commit.

11. That after he was forcibly seized, plaintiff was arrested by the NYPD and then imprisoned at various locations, including but not limited to a police vehicle, a police precinct, Central Booking, and Riker's Island Correctional Facility.

12. That on or about February 7, 2018, Burgos criminally charged plaintiff with various crimes, including assault, gang assault, and criminal possession of a weapon, crimes that

plaintiff did not commit, that Burgos knew plaintiff did not commit, and for which Burgos did not have probable cause to charge plaintiff.

13. That in support of the aforesaid prosecution, Burgos authored, signed, and executed a sworn accusatory instrument in which he made accusations against plaintiff that he knew were false.

14. That in further support of the criminal prosecution, Burgos made statements to the Office of the District Attorney and others that were false and that he knew were false, including but not limited to that there were multiple witnesses to the crimes with which Burgos charged plaintiff.

15. That in further support of the criminal prosecution, Burgos improperly induced the alleged victim to make false statements to implicate plaintiff in the crimes with which plaintiff was charged.

16. That the aforementioned false statements and fabrications made and/or orchestrated by Burgos constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's or Criminal Court judge's decision on plaintiff's guilt or innocence.

17. That as a consequence of the aforesaid fabrications and prosecution, plaintiff was required to appear in court, had his parole violated, was restricted in his travel and liberty, and was incarcerated for several months until his release from custody on or about July 6, 2018.

18. That on or about August 7, 2018, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

19. That prior to plaintiff's arrest, and throughout plaintiff's prosecution, Burgos observed wrongful and unconstitutional conduct of fellow NYPD officers that caused and/or contributed to plaintiff's arrest, imprisonment, and prosecution.

20. That Burgos had reasonable opportunities to intervene to prevent and/or stop that wrongful and unconstitutional conduct, and willfully failed and refused to do so.

21. That the aforesaid actions by Burgos and the other involved NYPD officers were done intentionally and maliciously.

22. That as a result of the aforementioned actions by defendants, plaintiff sustained injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, was deprived of his liberty and freedom, was damaged in his reputation, and has been otherwise damaged.

23. That upon information and belief, prior to the events alleged herein, Burgos and the other involved NYPD officers had engaged in improper and unconstitutional conduct that led to the false arrest and malicious prosecution of other individuals, and had otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

24. That upon information and belief, prior to the events alleged herein, the City and the NYPD knew that Burgos and the other involved NYPD officers had engaged in improper and unconstitutional conduct that led to the false arrest and malicious prosecution of other individuals, and had otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

25. That upon information and belief, prior to the events alleged herein, the City and the NYPD knew that Burgos and the other involved NYPD officers were unfit to act as police officers.

26. That despite the City's and the NYPD's prior knowledge of Burgos' and the other involved NYPD officers' unfitness and propensities, the City and the NYPD knowingly retained Burgos and the other involved NYPD officers, and failed to take necessary remedial measures, thereby subjecting plaintiff to Burgos' and the other involved NYPD officers' improper, illegal, and unconstitutional conduct.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS

(False Arrest/False Imprisonment Under NY State Law)

27. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

28. That the aforesaid actions of Burgos and the other involved NYPD officers constitute a false arrest and false imprisonment of plaintiff, for which Burgos and the other involved NYPD officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Malicious Prosecution Under NY State Law)

29. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

30. That the aforesaid actions of Burgos and the other involved NYPD officers constitute a malicious prosecution of plaintiff, for which Burgos and the other involved NYPD officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST BURGOS

(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations,
Based on False Arrest/Imprisonment and Malicious Prosecution)

31. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

32. That the aforesaid actions by Burgos in improperly causing the detention, arrest, and prosecution of plaintiff, constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION AGAINST BURGOS

(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations,
Based on Failure to Intervene)

33. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

34. That the aforesaid actions by Burgos in failing to intervene to prevent and/or stop the aforesaid improper conduct by his fellow officers constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth

Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42

U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST BURGOS

(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforesaid actions by Burgos constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, and Retention)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforesaid actions by Burgos and the other involved NYPD officers and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, and retention of Burgos and the other involved NYPD officers.

SEVENTH CAUSE OF ACTION AGAINST THE CITY

(Monell Claim: Deliberate Indifference)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforesaid actions by Burgos and the other involved NYPD officers and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by Burgos and the other involved

NYPD officers involving violations of the constitutional rights of citizens of the State of New York.

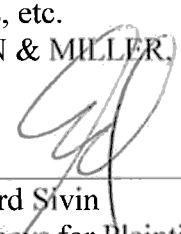
41. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Burgos in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against all defendants pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
December 11, 2018

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

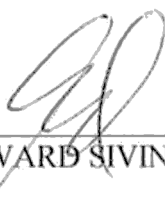
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
December 11, 2018



EDWARD SIVIN

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CHRISTOPHER PHILLIPS,

Plaintiff,

-against-

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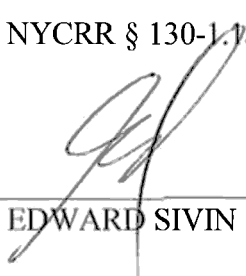
Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
December 11, 2018